

Court No. - 2

Case :- WRIT - C No. - 39823 of 2011

Petitioner :- Ishtiyak Ahmad

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Yashwant Singh "Subansha"

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Heard learned Counsel for the petitioner and Sri H.P.Dube, learned counsel for the respondents.

By this writ petition the petitioner has prayed for a writ of mandamus directing the respondents to provide the correct Electricity bill to the petitioner.

The petitioner's allegation in the writ petition is that he is receiving incorrect bills not based on the actual meter reading. In this regard, the petitioner has already submitted complaints on 24.2.2011 and 29.03.2011 (Annexure Nos.5 & 6 to the writ petition) before the Executive Engineer.

Sri H.P. Dubey, learned counsel for the respondents submitted that under para 6.5. of U.P. Electricity Supply Code, 2005 the complaint has to be considered by the authority regarding incorrectness of the bills.

In view of the above, the petitioner has remedy under para 6.5 of the 'Code' and the petitioner may avail the appropriate remedy.

We, however, may observe that the petitioner's complaint dated 13th July, 2011 which is pending before the Executive Engineer is directed to be decided and an appropriate decision shall be taken by the respondents expeditiously within a period of two months from the date of production of a certified copy of this order before him.

Subject to above the writ petition is dismissed.

Order Date :- 20.7.2011

S.P.